

Allen

Date: 4/4/18

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING, CREATING, OR DELETING VARIOUS CHAPTERS AND SECTIONS WITHIN TITLE 15, BUILDINGS AND CONSTRUCTION, OF THE CHEYENNE CITY CODE RELATING TO ADOPTION OF THE NATIONAL ELECTRICAL CODE, 2017 EDITION."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That various chapters and sections within Title 15, Buildings and Construction, of the Cheyenne City Code, relating to general provisions, and adoption of the National Electrical Code, 2017 edition, are hereby amended, created or deleted as set forth in this ordinance. Chapters and sections currently existing within Title 15, Buildings and Construction, not set out or clarified by an *[Editing note: ...]* within this ordinance remain unchanged.

Section 2. That Chapter 15.20 - National Electrical Code Adopted—Appendix K, International Building Code—Administrative Provisions Adopted, is amended as follows:

15.20.010 - National Electrical Code—Adopted

A document, one copy of which is on file and open for inspection of the public in the office of the city clerk, being marked and designated as:

National Electrical Code, 2014 2017 Edition, as published by the National Fire Protection Association, Inc.;

is referred to, adopted, and made a part hereof as if fully set out in this chapter.

15.20.020 - Amendments.

The National Electrical Code adopted in Section 15.20.010 above is amended as follows:

- A. Article 230.70(A)(1) is amended by the addition of a second sentence to read as follows:

~~Main distribution panels~~ **Service disconnecting means** must be located immediately behind metering equipment or directly adjacent to metering equipment. ~~or a disconnect switch shall be provided.~~

15.20.040 - Amendments.

- A. Section K103.2 is amended by the deletion of item number 5.

~~B. Section K111.4 is deleted and re-created to read as follows:
Nonmetallic-sheathed cable.~~

~~Type NM and NMC cables can be used in any of the following occupancies:~~

~~(1) One and Two Family dwellings.~~

~~(2) Multifamily dwellings of Type III, IV and V construction, except as prohibited in
Section 334.12 of the National Electrical Code, 2014 edition.~~

~~In other structures of Type III, IV and V construction (except as prohibited in Section
334.12 of the National Electrical Code, 2014 edition), cables shall be concealed within
walls, floors, or ceilings that provide a thermal barrier of material that has at least a 15-
minute finish rating as identified in listings of fire-rated assemblies.~~

Section 3. Sections, paragraphs, sentences, clauses and phrases of this ordinance
are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is
declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect
any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 4. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

MARIAN J. ORR, MAYOR

(SEAL)

CAROL INTLEKOFER, CITY CLERK

published: _____



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A COMMUNITY OF CHOICE

STAFF MEMO

Re: Adoption of 2017 National Electrical Code

From: Robert Briggs, AICP, Director of Planning and Development

To: Mayor and City Council

Date: April 4, 2018

Recommendation:

Staff recommends adoption of the attached ordinance.

Background:

The state of Wyoming routinely adopts new editions of the National Electrical Code (NEC), International Fire Code (IFC), the International Building Code (IBC), the International Mechanical Code (IMC), the International Existing Building Code (IEBC) and the International Fuel Gas Code (IFGC) as the life safety standards for construction in the state of Wyoming. In order for a Wyoming community to exert home rule for inspection of commercial structures, the community must adopt the same versions of the NEC and International Codes that have been adopted by the State Council on Fire Prevention and Electrical Safety in Buildings (W.S. §35-9-121).

This means that the City of Cheyenne must routinely adopt new versions of the National Electrical Code and International Codes as they become available and are adopted by the state. The ordinance before the Council amends the existing Title 15 of the Cheyenne Municipal Code in the following ways:

- Adopts the 2017 National Electrical Code to supersede the previously adopted 2014 code.
- Changes the language for a local amendment to the NEC regarding the location of shut off equipment to standard language used in industry and code. (*The reason for this local amendment is to place the location of the shut-off for electrical service in a standard location, making it easier to find in the event of a fire, or for convenience and safety of the building owner*).
- Eliminates a redundant provision regarding the use of certain cable in residential construction. Provisions for the use of this cable are already contained within the NEC, and the NEC governs all electrical work within the city.

END OF MEMO